

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: SMC on July 20, 2026
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***Ellis v. Planet Vegan, LLC, et al.***
Superior Court Case No. 24CECG02698

Hearing Date: July 21, 2026 (Dept. 403)

Motion: By Defendant Marshall Excelsior Company to Compel Further
Response's to Request for Production of Documents, Set One

Tentative Ruling:

To deny. (Code Civ. Proc., § 2017.010, 2031.310.) To deny both parties' requests for sanctions.

Explanation:

Defendant Marshall Excelsior Company ("Marshall") moves to compel further responses from plaintiff to document demands seeking documentation of plaintiff's claim for lost wages. Prior to the pretrial discovery conference and defendant's filing of the motion to compel, plaintiff served supplemental responses waiving such damages, stating, "Responding Party is not making a claim for lost wages, lost income, future lost income and/or earning capacity and, therefore, this request for production is not applicable."

A party may obtain discovery regarding any relevant, non-privileged matter that reasonably could lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) In light of plaintiff's amended responses, documentation relating lost wages is no longer relevant or within the scope of discovery.

The motion to compel is based on the assertion that "Plaintiff places his earnings and alleged loss of earnings directly at issue by seeking damages for lost wages, lost income, future lost income, and/or earning capacity." Since the service of the amended responses, this is categorically not true. Marshall's insistence that plaintiff execute an irrevocable waiver of any future ability to seek such damages is unnecessary, unreasonable, and unsupported by authority. In its January 16, 2026 Order After Pretrial Discovery Conference, the court stated, "Plaintiff recently amended his discovery responses wherein he took the position under penalty of perjury that he is not seeking loss of earnings damages against defendant [Marshall]. In the off chance (albeit remote) that plaintiff further amends his discovery responses to claim such damages against Marshall, the court will entertain, and likely grant, a motion by Marshall to continue the trial and reopen discovery at least on the issue of plaintiff's re-claimed loss of earnings damages." That is how things will proceed in the unlikely event that plaintiff subsequently walks back this waiver.

Given the court's ruling on the motion, Marshall's request for sanctions is denied. Plaintiff requests \$2,500 in sanctions against Marshall. If a party properly asks for monetary sanctions, such sanction "shall" be imposed unless the court finds that party made or opposed the motion "with substantial justification" or other circumstances make the

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